

SENATE No. 962

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote Yes in My Back Yard.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/28/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/28/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/28/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>3/8/2025</i>
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	<i>3/21/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/4/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/13/2025</i>

SENATE No. 962

By Mr. Crighton, a petition (accompanied by bill, Senate, No. 962) of Brendan P. Crighton, Manny Cruz, Mike Connolly, Sal N. DiDomenico and others for legislation to promote Yes in My Back Yard. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 858 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote Yes in My Back Yard.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1a of Chapter 40A of the General Laws, as so appearing, is
2 amended by inserting the following definitions:

3 “Duplex” - two dwelling units on the same parcel or lot in attached, detached, or semi-
4 detached arrangements that are designed for residential occupancy by not more than two
5 households living independently from each other.

6 “Triplex” - three dwelling units on the same parcel or lot in attached, detached, or semi-
7 detached arrangements that are designed for residential occupancy by not more than three
8 households living independently from each other.

“Quadplex” - four dwelling units on the same parcel or lot in attached, detached, or semi-detached arrangements that are designed for residential occupancy by not more than four households living independently from each other.

“Townhome” - dwelling units that are constructed in a row of two or more attached units in which each dwelling unit shares at least one common wall with an adjacent unit and that are accessed by separate outdoor entrances

Section 1a of Chapter 40A of the General Laws, as so appearing, is amended by striking out the definition “multi-family housing” and inserting in place thereof the following definition:

“Multi-family housing” - a building with 3 or more residential dwelling units or 2 or more buildings on the same lot with more than 1 residential dwelling unit in each building, inclusive of but not limited to triplexes, quadplexes, and townhomes.

Section 3 of Chapter 40A of the General Laws, as so appearing, is amended by inserting the following paragraphs:

No zoning ordinance or by-law in an area connected to a municipal or centrally managed water and sewer system shall prohibit the use of duplexes, as defined in Section 1a or multi-family housing, as defined in Section 1a, containing up to five dwelling units on lots zoned for residential use as of right, provided, that the use of land or structures for duplexes and multi-family housing containing up to five dwelling units may be subject to reasonable regulations, including, but not limited to, 310 CMR 15.000 et seq., if applicable, site plan review, regulations concerning dimensional setbacks and the bulk and height of structures, provided that regulations concerning the height of a duplex or multi-family housing does not limit height to less than 2 stories and provided further that those regulations either individually or cumulatively do not

render the development of land for duplexes and multi-family housing infeasible, and may be subject to restrictions and prohibitions on short-term rental, as defined in section 1 of chapter 64G.

No zoning ordinance or by-law shall prohibit the use of duplexes, as defined in Section 1a or multi-family housing, as defined in Section 1a, containing up to three dwelling units on lots zoned for residential use as of right, provided, that the use of land or structures for duplexes and multi-family housing containing up to three dwelling units may be subject to reasonable regulations, including, but not limited to, 310 CMR 15.000 et seq., if applicable, site plan review, regulations concerning dimensional setbacks and the bulk and height of structures, provided that regulations concerning the height of a duplex or multi-family housing does not limit height to less than 2 stories and provided further that those regulations either individually or cumulatively do not render the development of land for duplexes and multi-family housing infeasible, and may be subject to restrictions and prohibitions on short-term rental, as defined in section 1 of chapter 64G.

The executive office of housing and livable communities may develop a model zoning code to assist municipalities in the implementation of this paragraph and shall issue guidelines or promulgate regulations to administer this paragraph.

The effective date of this paragraph shall be 365 days after the effective date of this act.

SECTION 2. Section 3 of Chapter 40A of the General Laws, as so appearing, is amended by inserting the following paragraphs:

No zoning ordinance or by-law shall impose minimum automobile parking requirements on new residential developments. The Executive Office of Housing and Livable Communities may issue guidelines or promulgate regulations to administer this paragraph.

The effective date of this paragraph shall be 365 days after the effective date of this act.

SECTION 3. Said section 81L of said chapter 41, as so appearing, is hereby amended by inserting the following definition -

“Missing-Middle Housing Subdivision” in accordance with section 81HH, the division of a lot, tract or parcel of land into 2 or more lots, tracts or parcels where, at the time when it is made, every lot within the lot, tract or parcel so divided has frontage on: (i) a public way or a way which the clerk of the city or town certifies is maintained and used as a public way; (ii) a way shown on a plan approved and endorsed in accordance with the subdivision control law; or (iii) a way in existence when the subdivision control law became effective in the city or town in which the land lies having, in the opinion of the planning board, sufficient width, suitable grades and adequate construction to provide for the needs of vehicular traffic in relation to the proposed use of the land abutting thereon or served thereby and for the installation of municipal services to serve the land and the buildings erected or to be erected thereon; provided, however, that the frontage shall be of at least 20 feet, but with a maximum of 50 feet; and, provided further that the maximum lot size for each newly created lot be not greater than 10,000 square feet; and provided further that the use of the lots shall be exclusively for residential purposes.

Based on this paragraph, the executive office of housing and livable communities shall be responsible for developing objective and standardized criteria for what constitutes a Missing-Middle Housing Subdivision.

Said section 81P of said chapter 41, as so appearing, is hereby amended by inserting after the last paragraph the following paragraph -

Any person wishing to cause to be recorded a plan of land situated in a city or town in which the subdivision control law is in effect, who believes that his plan is a Missing-Middle Housing Subdivision, may submit his plan to the planning board of such city or town in the manner prescribed in section eighty-one T, and, if the board finds that the plan is such a Missing-Middle Housing Subdivision, it shall forthwith, without a public hearing, endorse thereon or cause to be endorsed thereon by a person authorized by it the words "approved as a Missing-Middle Housing Subdivision" or words of similar import with appropriate name or names signed thereto, and such endorsement shall be conclusive on all persons. Such endorsement shall not be withheld unless such plan shows a subdivision. If the board shall determine that in its opinion the plan requires approval under the subdivision control law, it shall within twenty-one days of such submittal, give written notice of its determination to the clerk of the city or town and the person submitting the plan, and such person may submit his plan for approval as provided by law and the rules and regulations of the board, or he may appeal from the determination of the board in the manner provided in section eighty-one BB. If the board fails to act upon a plan submitted under this section or fails to notify the clerk of the city or town and the person submitting the plan of its action within twenty-one days after its submission, it shall be deemed to have determined that it is a Missing-Middle Housing Subdivision, and it shall forthwith make such endorsement on said plan, and on its failure to do so forthwith the city or town clerk shall issue a certificate to the same effect. The plan bearing such endorsement or the plan and such certificate, as the case may be, shall be delivered by the planning board, or in case of the certificate, by the city or town clerk, to the person submitting such plan. The planning board of a city or town

which has authorized any person, other than a majority of the board, to endorse on a plan the approval of the board or to make any other certificate under the subdivision control law, shall transmit a written statement to the register of deeds and the recorder of the land court, signed by a majority of the board, giving the name of the person so authorized.

The endorsement under this section may include a statement of the reason as to why the subdivision constitutes a Missing-Middle Housing Subdivision.

Said section 81T of said chapter 41, as so appearing, is hereby amended by inserting after “approval is not required” in line 2 -Or a Missing-Middle Housing Subdivision

Said chapter 41 is hereby further amended by inserting after section 81GG the following section:-

Section 81HH (a) The purpose of a Missing-Middle Housing Subdivision, as provided for in this section, is to encourage and facilitate the development of missing-middle housing, including but not limited to duplexes, triplexes, quadplexes, and townhomes, as defined in Chapter 40A Section 1a by establishing a standardized and objective process through which a property owner can subdivide their property.

(b) No application for a Missing-Middle Housing Subdivision shall be: (i) subject to a public hearing if every lot within the lot meets the frontage requirements established in Section 81L; (ii) subject to the requirements of section 81S; (iii) subject to a requirement that total travelled lanes’ widths shall be greater than 22 feet; (iv) subject to a procedural or substantive requirement more stringent than those specified in this chapter or contained in a city or town’s local rules and regulations otherwise applicable to subdivisions; and (v) approved ministerially based on a determination by a majority of the planning board that an application

meets all criteria required by the rules and regulations provided in this chapter and by the executive office of housing and livable communities.

(c) For a Missing-Middle Housing Subdivision on an existing way, the planning board shall take final action and file with the city or town clerk a certificate of such action within 60 days. Failure to take final action and file with the city or town clerk a certificate of such action within 60 days shall be deemed an approval of a minor subdivision on an existing way.

(d) For a Missing-Middle Housing Subdivision on a new way, the planning board shall take final action and file with the city or town clerk a certificate of such final action within 90 days. Failure to take final action and file such certificate within 90 days shall be deemed an approval of a minor subdivision on a new way.

The effective date of this section shall be 365 days after the effective date of this act.

Section 3 of Chapter 40A of the General Laws, as so appearing, is amended by inserting after the last paragraph:

No zoning ordinance or by-law shall impose minimum lot size requirements on new residential developments. The executive office of housing and livable communities may issue guidelines or promulgate regulations to administer this paragraph.

SECTION 4. Section 1A of Chapter 40A of the General Laws, as so appearing, is amended by inserting the following definition:

“Bus Station” means a building located at the intersection of two or more bus lines, within which services are available to bus passengers; provided that a bus station does not include a shelter or other structure without walls and a foundation.

Chapter 40A, of the General Laws, as so appearing, is hereby amended by adding the following section:

Section 18. (a) Any zoning regulations adopted pursuant to Chapter 40A shall allow, as of right and with no minimum parking requirements for dwelling units, mixed-use development or multifamily housing with a minimum gross density of 15 units per acre, subject to any further limitations imposed by section 40 of chapter 131 and title 5 of the state environmental code established pursuant to section 13 of chapter 21A, and be located not more than 0.5 miles from a commuter rail station, subway station, ferry terminal or bus station, if applicable.

(b) Any zoning regulations adopted pursuant to Chapter 40A shall allow, as of right and with no minimum parking requirements for dwelling units, multifamily housing with a minimum gross density of 15 units per acre, subject to any further limitations imposed by section 40 of chapter 131 and title 5 of the state environmental code established pursuant to section 13 of chapter 21A, and be located not more than 0.25 miles from an eligible location.

(c) Any development permitted pursuant to subsections (a) or (b) which includes ten or more residential units shall set aside a minimum of fifteen percent of the residential units to households earning at or below 80% of the Area Median Income or a minimum of ten percent of the residential units to households earning at or below 50% of the Area Median Income as determined by the U.S. Department of Housing and Urban Development.

(d) If a municipality fails to adopt new regulations or amend existing regulations to comply with the provisions of this section by January 1, 2027, any noncompliant existing regulation shall become null and void and such municipality shall approve or deny applications

in accordance with the requirements for regulations set forth in the provisions of this section until such municipality adopts or amends a regulation in compliance with this section.

(e) A municipality shall not use or impose standards to discourage through unreasonable costs or delays the development of housing described in this section.

SECTION 5. The secretary of housing and livable communities, secretary of energy and environmental affairs, the secretary of transportation, and the executive director of the Massachusetts Development Finance Agency shall jointly submit a report to the joint committee on housing identifying greyfields sites across the commonwealth, options for redevelopment or reuse that may include housing, public use or facilities, mixed use development, or natural restoration and open space, and identify programs within the appropriate state and quasi-public agencies that can be used to support communities in repurposing underutilized land.

For the purposes of this act, the term greyfields may include, but is not limited to, land with development that is outdated, underutilized, failing, or vacant, including commercial, residential, and industrial properties. This term may also include land that is owned by the commonwealth, its agencies, or its political subdivisions.

SECTION 6. Section 34 of Chapter 7C of the General Laws, as so appearing, are hereby amended by inserting the following paragraph:

(c) Prior to disposition of publicly owned real property of the commonwealth pursuant to chapter 7C, the commissioner of capital asset management and maintenance in coordination with the secretary of the executive office of housing and economic development shall determine whether such real property shall be made available for low or moderate income housing pursuant

to this chapter. In making such determination the commissioner and the secretary shall take into account the following factors:

(i) existing zoning that limits the siting of low or moderate income housing in the city or town in which the publicly owned real property is located;

(ii) financial or other deterrents to the production of low or moderate income housing in the city or town in which the real property is located; and

(iii) ensuring that real property for disposition under this chapter is fairly made available to all regions of the commonwealth, including gateway municipalities, rural areas and suburban areas.

Upon making the determination that publicly owned real property shall be made available for disposition under this chapter, the commissioner and the secretary shall, notwithstanding chapter 7C or any other law to the contrary, declare the property available for development of low or moderate income housing in accordance with this chapter.

SECTION 7. Section 13 of chapter 21A, as so appearing, is hereby amended by striking out the first paragraph and inserting in place thereof the following paragraph:

A board of health may adopt a local on-site sewage disposal systems regulation, only to the extent that it imposes standards or other requirements that are more stringent than or otherwise exceed those set forth in Title 5 of the State Environmental Code, 310 CMR 15.000, and only if, prior to adoption by the board of health, the department of environmental protection shall review and approve any such proposed on-site sewage disposal systems regulation based upon findings that the proposed regulation has a generally recognized scientific basis, is a

recommended best practice technique, is necessary to protect unusual local resources that warrant special or enhanced protection, and does not conflict with Title 5 of the State Environmental Code, 310 CMR 15.000.

SECTION 8. Section 17 of chapter 40A is hereby amended by striking in the first paragraph the words “may appeal” and replacing them with “may pursuant to G.L. c.423, § 4 petition for certiorari”; and is further amended by striking the seventh sentence in the second paragraph of said section.

Section 3A of chapter 184 is hereby amended by striking the first sentence in the fourth paragraph and replacing it with:

Notwithstanding any other general or special law to the contrary, any action not commenced in the permit session, but within the jurisdiction of the permit session as provided in this section, either (i) shall be transferred to the permit session if the underlying project or development involves 25 or more dwelling units, or (ii) may be transferred to the permit session, in either case upon motion by any party to the chief justice of the trial court.

SECTION 9. Section 31 of chapter 111 is hereby amended by striking the first paragraph and replacing it with:

Boards of health may make reasonable health regulations provided that no regulation or amendment thereto which relates to the minimum requirements for subsurface disposal of sanitary sewage shall exceed the requirements of the state environmental code A summary which shall describe the substance of any regulation made by a board of health under this chapter shall be published once in a newspaper of general circulation in the city or town, and such publication shall be notice to all persons. Whoever, himself or by his servant or agent, or as the servant or

agent of any other person or any firm or corporation, violates any reasonable health regulation, made under authority of this section, for which no penalty by way of fine or imprisonment, or both, is provided by law, shall be punished by a fine of not more than one thousand dollars.

SECTION 10. Section 40 of chapter 131 is hereby amended by adding the following at the end of said section:

No city or town may enforce an ordinance or bylaw that exceeds the requirements of this section or of regulations promulgated by the department of environmental protection pursuant to this section.

SECTION 11. Section 3 of Chapter 40A is hereby amended by adding the following sentence to the end of the first sentence beginning “No zoning ordinance or by-law shall prohibit, unreasonably restrict or require a special permit or other discretionary zoning approval for the use of land or structures for a single accessory dwelling unit”:

Provided further that no zoning ordinance or by-law may prohibit the use of Accessory Dwelling Units as of right on lots where the principal dwelling contains more than one dwelling unit

SECTION 12. The General Court may adopt the recommendations of the Housing Advisory Council established by Executive Order Number 621, issued on October 18th, 2023, to establish a Housing Production Plan which identifies existing limitations on the production of affordable and market rate housing in each region of the state and develops a comprehensive statewide housing plan to guide the production, rehabilitation, preservation, operation, and subsidization of housing.